

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF NAZAREDSKAYA AND OTHERS v. RUSSIA

(Applications nos. 52077/22 and 22 others –
see appended list)

JUDGMENT

STRASBOURG

18 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Nazaredskaya and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of nationwide protests against the Russian military attack on Ukraine. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO).

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Péter Paczolay President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	52077/22 21/10/2022	**Sofya Igorevna NAZAREDSKAYA** 2000		Anti-war protest Moscow 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/06/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
2.	52436/22 21/10/2022	**Sergey Georgiyevich KOLESNIKOV** 1970		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 29/06/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 4.25 p.m. until 11.50 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	54282/22 02/11/2022	**Kori MALTS** 2002		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 05/07/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 9 p.m. on 24/02/2022 until 6 a.m. 25/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
4.	54431/22 29/10/2022	**Anastasiya Stanislavovna YAKUBA** 2001	Baranova Nataliya Andreyevna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 29/06/2022	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	56096/22 10/11/2022	**Vladimir Yevgenyevich KONSHIN** 1981		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 25/07/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 4.30 p.m. on 27/02/2022 until 1.35 a.m. on 28/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	56112/22 20/11/2022	**Nadezhda Viktorovna UTKINA** 1986	Baranova Nataliya Andreyevna Moscow	Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 7.40 p.m. on 24/02/2022 until 2 a.m. on 25/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	56387/22 21/11/2022	**Daniil Sergeyevich BOROZDIN** 1996		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.05 p.m. on 27/02/2022 until 12.30 a.m. on 28/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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8.	56818/22 09/11/2022	**Arina Igorevna MAKAROVA** 1999	Baranova Nataliya Andreyevna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 13/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	56891/22 08/12/2022	**Igor Gennadyevich SYCHEV** 2000	Ushakov Timofey Borisovich Kokoshkino	Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/08/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
10.	56909/22 01/12/2022	**Maksim Glebovich MELENCHENKO** 2001	Mikhaylova Varvara Dmitriyevna St Petersburg	Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 03/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 03/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	56917/22 18/11/2022	**Varvara Andreyevna POPOVA** 2001	Baranova Nataliya Andreyevna Moscow	Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 19/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 03/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	56927/22 28/11/2022	**Ivan Nikolayevich LOZHKIN** 1985		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.35 p.m. until 9.40 p.m. on 06/03/2022;	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
13.	56928/22 25/11/2022	**Polina Aleksandrovna LEMESHEVA** 1994	Timireva Olga Vladimirovna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/08/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
14.	57020/22 13/11/2022	**Sergey Igorevich KRAUKLISH** 1969	Zyryanova Mariya Sergeyevna St Petersburg	Anti-war protest St Petersburg 06/03/2022	article 20.2 § 6.1 of CAO	fine of RUB 10,000	St Petersburg City Court 14/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.50 p.m. until 9.15 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
15.	57033/22 15/11/2022	**Anna Mikhaylovna MUKHOYAN** 1999		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	57339/22 19/11/2022	**Ivan Dmitriyevich MITRAKOV** 1993		Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 03/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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17.	57396/22 17/11/2022	**Olga Dmitriyevna SLUZHBINA** 2002		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 29/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	57514/22 17/11/2022	**Galina Vladimirovna BOBROVA** 1968		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	57517/22 08/12/2022	**Tatyana Valeryevna DAVIDIS** 1969		Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 15/08/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 4.50 p.m. until 11 p.m. on 27/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	57546/22 29/11/2022	**Nataliya Aleksandrovna LAUVE** 2000	Baranova Natalya Andreyevna Moscow	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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21.	57583/22 19/11/2022	**Mikhail Mikhaylovich STARIKOV** 1983		Anti-war protest Moscow 03/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 7.40 p.m. on 03/03/2022 until 1.30 a.m. on 04/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
22.	57714/22 08/12/2022	**Yelena Aleksandrovna DOBRIKOVA** 1992	Ushakov Timofey Borisovich Kokoshkino	Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 27/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	57852/22 21/11/2022	**Yevgeniy Yuryevich SIMONOV** 1977		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention – escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.